SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CUWT023824: JOSE GALVAN vs S&P GLOBAL, et al.
07/23/2026 in Department 21
Motion for Summary Judgment for S&P Global

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court's tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant S&P Global Motion for Summary Judgment or, in the Alternative, Summary Adjudication (*Opposed*)

Tentative Ruling:

Defendant S&P Global's Motion for Summary Judgment is DENIED. The alternative Motion for Summary Adjudication is GRANTED in part and DENIED in part.

Summary adjudication is GRANTED as to Issues 20, 21, 23, 25, and 26, and DENIED as to Issues 1-19, 22, 24, 27, 28, and 29.

Evidentiary Objections

Plaintiff's objections Nos. 1-5 are OVERRULED. No. 6 is OVERRULED, except Cauvel's "Notes to File" may establish S&P's documented perceptions and reasons but do not, merely by their existence, prove the objective truth of every alleged performance deficiency.

S&P's objection to the unsigned Rahman declaration is SUSTAINED in part as to the declaration itself, but independently authenticated exhibits and deposition testimony remain admissible.

S&P's objections are otherwise ruled upon as follows:

SUSTAINED: Nos. 29, 35, 37, 39-40, 50, 54-55, 60, 74, 77-78.

OVERRULED: Nos. 1-13, 15-18, 20-28, 30-34, 36, 38, 41-46, 51-53, 56-59, 61-73, 75-76, 79-81, 83-90, 92-100.

Nos. 14, 19, and 91 are sustained only to the extent Plaintiff offers lay testimony as a legal conclusion that the data practices were actually unlawful; otherwise overruled.

Nos. 47-49 are sustained only as to questions or objections unsupported by responsive testimony.

No. 82 is sustained in part as to unsupported testimony concerning others' racial or ethnic self-identification.

Material Facts

Defendant's UMF Nos. 19, 21, 24, 28, 43-45, 47, 57-58, 62, 65, 67-68, 70, 72, 74-76, 80, and 88 are DISPUTED and NOT ESTABLISHED.

Defendant's UMF Nos. 1-18, 20, 22, 23, 27, 29, 30, 32, 33, 35, 36, 40-42, 46, 48-52, 54-56, 60, 61, 63, 69, 71, 73, 77, 81-84, 86, 87, and 89 are UNDISPUTED and ESTABLISHED, subject to the qualifications reflected in the evidence. UMF Nos. 90-118 are established only as incorporation statements and do not independently establish the associated legal conclusions.

Defendant's UMF Nos. 25, 26, 28, 31, 34, 37, 38, 39, 53, 59, 64, 66, 78, 79, and 85 are DISPUTED and ESTABLISHED, subject to the qualifications reflected in the evidence.

Plaintiff's AMF Nos. 13, 18, 28, 29 are DISPUTED and ESTABLISHED.

Plaintiff's AMF Nos. 5-6, 10, 12, 15, 21, 25-27, and 35 are DISPUTED and NOT ESTABLISHED as stated or cited.

The remaining AMFs are UNDISPUTED and ESTABLISHED, subject to the qualifications reflected in the evidence, including that AMF No. 22 contains an erroneous pinpoint but is supported elsewhere in the cited deposition.

Merits

Issues 1-4: Disability Discrimination: DENIED

Triable issues exist concerning Plaintiff's qualification, the timing of the final termination decision, and pretext. Although S&P began performance management before Plaintiff's injury, internal communications referring to Plaintiff's "planned release," replacement, the need to proceed through a PIP, and whether he was making any improvements while on the PIP, permit competing inferences regarding whether the PIP was a genuine corrective process. Plaintiff became disabled during the PIP, underwent surgery, had a shortened opportunity to complete the PIP, and was terminated shortly after returning with restrictions. These competing inferences cannot be weighed on summary judgment.

Issues 5-6: Accommodation / Interactive Process: DENIED

S&P had medical information concerning Plaintiff's disability, surgery, absence, and return-to-work restrictions. No interactive process occurred. Plaintiff's evidence also permits an argument that the medical absence materially consumed the PIP period and that S&P never considered extending or pausing the PIP or otherwise discussing how the disability affected the performance process. FEHA separately requires reasonable accommodation and a timely, good-faith interactive process; it also expressly protects requests for reasonable accommodation. Whether S&P's duties were extinguished because termination had already been irrevocably decided, and whether the PIP should have been paused or extended, present triable issues.

Issues 7-10: Race Discrimination: DENIED

Although there were no racial remarks, Mondragon is Hispanic, and Plaintiff was later replaced by an Asian woman, Plaintiff presents comparator evidence concerning account assignments and differential treatment of Gagnier, together with disputed evidence concerning the legitimacy of the performance process. The evidence permits competing inferences concerning discriminatory motive.

Issues 11-13: FEHA Retaliation: DENIED

Plaintiff's disability-related requests present a triable protected-activity issue. FEHA expressly prohibits retaliation against a person for requesting reasonable accommodation, regardless of whether the accommodation was ultimately granted.

Plaintiff submitted medical documentation requiring time away from work and later imposing return-to-work restrictions. The evidence therefore permits a finding that he sought disability-related accommodation even though he did not use a particular statutory label or formal portal. The final termination decision occurred after S&P learned of his medical condition, and termination followed shortly after his return. Although S&P had already begun performance management earlier—which strongly supports its defense—the disputed state of the termination decision and the disputed PIP process prevent the Court from resolving causation and pretext as a matter of law.

Issues 14-15: Failure to Prevent: DENIED

Underlying FEHA claims remain viable. The existence of written policies alone does not conclusively establish that S&P took all reasonable preventive or corrective measures in Plaintiff's circumstances. Plaintiff presents evidence that no interactive process occurred and disputes whether applicable procedures were followed.

Issues 16-17: CFRA: DENIED

Plaintiff was not required to expressly request "CFRA leave." His medical documentation and surgery may have provided sufficient notice of a potentially qualifying condition. Use of paid Recharge time does not conclusively defeat CFRA protection.

California authority recognizes that whether the employee gave sufficient notice of a CFRA-qualifying reason is generally factual and that an employer may have a duty to inquire further when presented with information suggesting a qualifying need for leave.

Here, Plaintiff gave S&P doctor's notes, underwent wrist surgery, was medically unable to work for a period, and S&P permitted him to remain off work. The record further indicates no specific CFRA notice or designation was given. The fact that S&P continued his pay through its Recharge program does not establish, as a matter of law, that the absence could not simultaneously qualify for statutory protection.

Issues 18-20: Labor Code § 1102.5
Issues 18-19: DENIED. Issue 20: GRANTED.

Triable issues exist concerning whether Plaintiff reasonably believed the data practices were unlawful and whether his disclosure to Hermann constituted protected activity. However, Plaintiff presents no nonspeculative evidence that Hermann communicated the alleged disclosure to a termination decisionmaker or influenced the termination because of it. Causation is therefore lacking.

Here, the admissible record establishes that Hermann was not a termination decisionmaker and that the actual decisionmakers denied knowledge of Plaintiff's alleged disclosure. Plaintiff's contrary theory depends on an inference that, because Hermann had a duty to escalate such complaints and communicated with decisionmakers about other subjects, he must have transmitted Plaintiff's whistleblower complaint. There is no evidence that he actually did so. His advance knowledge of the termination and January 8 email concerning contractual consequences do not reasonably establish that he conveyed Plaintiff's complaint or influenced the termination because of it. The record analysis therefore treats the decisionmakers' lack of knowledge as established.

That inference crosses from circumstantial evidence into speculation. Without evidence that a decisionmaker knew of the disclosure or that someone with retaliatory knowledge influenced the decision, Plaintiff cannot show the whistleblowing was a contributing factor.

The Eleventh Cause of Action is summarily adjudicated in S&P's favor.

Issues 21-23: Breach of Contract
Issues 21 and 23: GRANTED. Issue 22: DENIED.

The alleged promise that Market Scan would "take care of" Plaintiff was made by Rusty West, not S&P, was never memorialized, and lacked sufficiently definite terms. Plaintiff himself described the statement that the company would "take care of him" as "just words" that "means nothing" because no actual amount or terms were specified. Plaintiff did not substantively defend this claim in his opposition. Plaintiff has not produced evidence of a contract with S&P or a basis in the record presented for imposing the alleged oral promise upon S&P.

The limitations issue is not established merely because the promise was made in 2006. The age of the promise alone does not establish when an actionable breach accrued. Because Issues 21 and 23 independently defeat the claim, this does not preserve the Twelfth Cause of Action.

As to issue 23, a generalized assurance to "take care of" an employee, without reasonably definite terms concerning what was promised, when performance was due, or what compensation or benefit would be provided, does not establish the requisite meeting of the minds on the record presented.

The Twelfth Cause of Action is summarily adjudicated in S&P's favor.

Issues 24-26: IIED
Issue 24: DENIED. Issues 25-26: GRANTED.

Workers' compensation exclusivity does not categorically bar emotional-distress claims arising from actionable FEHA violations. Nevertheless, the alleged personnel actions do not rise to the extreme and outrageous level required for IIED, and Plaintiff's evidence of intermittent distress and sleep disruption is insufficient to establish severe emotional distress. Plaintiff testified to feeling devastated and betrayed, financial worry concerning his family, and intermittent insomnia, but also that the distress occurs only sometimes, that he has never sought treatment, and that he does not intend to seek treatment. Lack of treatment is not dispositive, but the total evidence does not reasonably rise to the exceptionally severe level required for IIED.

The Thirteenth Cause of Action is summarily adjudicated in S&P's favor.

Issue 27: Unfair Competition Law ("UCL"): DENIED

S&P moves principally on the theory that the UCL claim lacks a predicate because all underlying FEHA and Labor Code claims fail. Because several FEHA and CFRA claims survive, S&P has not established the absence of any potentially "unlawful" predicate. Because underlying statutory claims remain viable, S&P has not eliminated every potential unlawful predicate.

Issue 28: Wrongful Termination: DENIED

S&P's argument is expressly derivative of its contention that all predicate violations fail. That premise has not been established. Plaintiff's surviving FEHA and CFRA claims may supply the necessary public-policy basis.

Issue 29: Punitive Damages: DENIED

In viewing the evidence favorably to Plaintiff, the facts are sufficient to raise a triable issue of fact as to malice, oppression, or fraud. The senior officials of S&P reassigned Plaintiffs accounts to another employee who was Caucasian, gave Plaintiff unsellable accounts, attempted to terminate him without providing a performance plan, terminated him prematurely, and failed to accommodate or provide the interactive process despite knowing of his disability. This evidence is sufficient to raise a factual issue as to the heightened culpability required for punitive damages.

<u>Conclusion:</u>

Defendant S&P Global's Motion for Summary Judgment is DENIED.

Defendant's alternative Motion for Summary Adjudication is GRANTED as to Issues 20, 21, 23, 25, and 26, and DENIED as to Issues 1-19, 22, 24, 27, 28, and 29.

As a result:

1. The Eleventh Cause of Action for whistleblower retaliation under Labor Code section 1102.5 is summarily adjudicated in S&P's favor.

2. The Twelfth Cause of Action for breach of contract is summarily adjudicated in S&P's favor.

3. The Thirteenth Cause of Action for intentional infliction of emotional distress is summarily adjudicated in S&P's favor.

4. Plaintiff's remaining causes of action against S&P remain for further proceedings.

Moving party to give notice.